

The U.P. Recognised Basic Schools (Recruitment And Conditions Of Service Of Teachers And Other Conditions) Rules, 1975

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The U.P. Recognised Basic Schools (Recruitment And Conditions Of Service Of Teachers And Other Conditions) Rules, 1975

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The U.P. Recognised Basic Schools (Recruitment And Conditions Of Service Of Teachers And Other Conditions) Rules, 1975

Rule

THE-U-P-RECOGNISED-BASIC-SCHOOLS-RECRUITMENT-AND-CONDITIONS-OF-SERVICE-OF-TEACHERS-AND-OTHER-CONDITIONS-RULES-1975 of 1975

Published on 20 May 1975

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The U.P. Recognised Basic Schools (Recruitment And Conditions Of Service Of Teachers And Other Conditions) Rules, 1975

Published Vide Notification No. 1931/15(6)-9(7)-73, dated 20.05.1975, published in U.P. Gazette, Extraordinary, dated 20.5.1975.

UP95

In exercise of the powers under sub-section (1) of section 19 of the Uttar Pradesh Basic Education Act, 1972 the Governor is pleased to make the following rules :

1.

Short title and commencement. -

(1)

These rules may be called the Uttar Pradesh Recognised Basic Schools (Recruitment and Conditions of Service of Teachers and other Conditions) Rules, 1975.

(2)

This rule and Rule 11 shall come into force at once and the remaining provisions shall come into force on the first day of July, 1975.

2.

Definitions. -

In these rules, unless the context otherwise requires -

(a)

"Act" means the Uttar Pradesh Basic Education Act, 1972;

(b)

"junior Basic Schools" means an institution other than High Schools or Intermediate Colleges imparting Education up to the V Class;

(c)

"Board" means the Uttar Pradesh Board of Basic Education constituted under Section 3 of the Act.

(d)

"District Basic Education Officer" means the District Basic Education Officer appointed by the State Government;

(e)

"Recognised School" means any Junior Basic School, not being an institution belonging to or wholly maintained by the board or any local body, recognised by the Board before the commencement of these rules for imparting education from Class I to V.

3.

Applicability. -

Every recognised school shall be bound by the conditions and restrictions hereinafter specified.

4.

Financial resources. -

In every recognised school adequate financial resources shall be made available by the management of such school for its efficient working and adequate facilities shall be provided in accordance with such standard as may be specified by the Board for teaching the subjects in respect of which such school is recognised.

5.

Buildings and equipment. -

In every recognised school, arrangements shall be made for such buildings, lavatories, playgrounds and equipments as are in accordance with the specifications specified by the Board and for the construction of well-ventilated and clean buildings in hygienic surroundings.

6.

Tuition fee. -

Subject to the provisions of Rule 7, tuition fee may be charged in any recognised school at a rate not exceeding Rs. 15 per month and no other amount by whatever name called either as fee, donation or contribution, shall be charged from the students.

7.

Exemption from tuition fee. -

Subject to the provisions of paras 106 to 114 of the Education Code, so far as they may be applicable, free education shall be provided in any recognised school to 25 per cent of the number of students on the rolls of such school.

8.

Text-books. -

No recognised school shall impart education in a curriculum or use any text-book other than those prescribed by the

Board.

[9. No person shall be appointed as teacher or other employee in any recognised school unless he possesses such qualifications as are specified in this behalf by the Board and for whose appointment the previous approval of the Basic Shiksha Adhikari has been obtained in writing. In case of vacancy the applications for appointment shall be invited by the concerned management through advertisement in at least two newspapers (one of them will be daily newspaper), giving at least thirty days time for submitting application. The date of interview may be given in the advertisement or the candidates be informed of the date fixed for interview by registered post, giving them at least 15 days time from the date of issue of the letter. The management shall not select any untrained teacher and if the selected candidate is a trained one, he will be approved by the Basic Shiksha Adhikari.]

[Substituted by Notification No. 8314/XV(6) - 9(7)-73 - U.P. Act
34 of 1972

- Rule 1975-AM(1)-77 dated 1.8.1977, published in the U.P. Gazette, Extraordinary, dated 1.8.1977.]

[10. A recognised school shall undertake to pay with effect from July 1, 1975 to every teacher and employee the same scale of pay, dearness allowance and additional dearness allowance as are paid to the teachers and employees of the Board possessing similar qualification. Pay will be disbursed through cheque.

11.

No order dismissing, removing or terminating the services of a teacher or other employee of a recognised school shall be passed save with the prior approval in writing of the Basic Shiksha Adhikari :

Provided that in case of recognised schools established and administered by minority referred to in clause (1) of Article 30 of the Constitution, such an order shall not require the approval of the Basic Shiksha Adhikari but shall be reported to him.]

[Substituted by Notification No. 8314/XV(6) - 9(7)-73 - U.P. Act
34 of 1972

- Rule 1975-AM(1)-77 dated 1.8.1977, published in the U.P. Gazette, Extraordinary, dated 1.8.1977.]

12.

Appeal against the order of the District Basic Education Officer. -

A teacher or the management feeling aggrieved from an order under Rule 1 passed by the District Basic Education Officer may, within thirty days from the date of communication of such order, appeal to the Board and the order passed in such appeal by the Board or person authorised by the Board shall be final.

13.

Duty to comply with conditions of recognition. -

It shall be the duty of the managing body or other person managing the affairs of a recognised school to comply' with the provisions of the Act and these rules and such other lawful directions as may from time to time be issued by a person authorised by the Board.

14.

Withdrawal of recognition. -

Where the Board is satisfied that any breach of the provisions of the Act or these rules has been committed in respect of any recognised school, the Board may, after affording an opportunity of being heard to the managing body or other person managing such school, withdraw its recognition.

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